

Giles v. Commonwealth

Giles v. Commonwealth, 277 Va. 369, 672 S.E.2d 879 (2009).

PROCEDURAL HISTORY:

Christopher Lee Giles was convicted of burglary under Virginia Code § 18.2-89 by a circuit court. He appealed the conviction, arguing that the structure he entered did not qualify as a "dwelling house" under the statute. The Court of Appeals affirmed the conviction, and Giles subsequently appealed to the Supreme Court of Virginia.

ISSUE:

Does a house that is not regularly occupied but is maintained for periodic habitation qualify as a "dwelling house" under Virginia's burglary statute, Code § 18.2-89?

Facts:

Oscar Thornton Jr. inherited a house in Martinsville, Virginia, after his mother's death on June 28, 2005. Although his primary residence was in Baltimore, Maryland, he visited the Martinsville house once or twice a month. The house was fully furnished, had operational utilities, and contained food supplies. Thornton stayed there for the entire weekend of September 17, 2005, just ten days before a burglary occurred. On September 28, 2005, Giles broke into the house and stole various items, including food, quilts, electronics, and bathroom supplies.

Rule of Law:

A "dwelling house" under Code § 18.2-89 is defined as a house used for habitation, including periodic habitation. Periodic habitation does not require regular use; rather, when the house is used, it must be for the purpose of habitation. The structure retains its status as a dwelling house even during periods of absence, provided it is maintained for residential purposes.

Reasoning:

The Supreme Court of Virginia emphasized that the definition of a dwelling house focuses on its intended use for habitation. The court noted that burglary laws aim to protect the security of habitation, addressing dangers to personal safety that arise from unauthorized intrusions. The presence of furniture, operational utilities, and food indicated that the house was maintained for habitation. Thornton's periodic stays and intent to return further supported the classification of the house as a dwelling. The court clarified that there is no requirement for continuous or regular occupancy; what matters is that the house is used for habitation when occupied.

Holding:

The Supreme Court of Virginia held that the house in question qualified as a "dwelling house" under Code § 18.2-89.

Order/Disposition:

The judgment of the Court of Appeals was affirmed, upholding Giles's conviction for burglary.